

Motion to Strike – Plaintiff moves to strike the request for punitive damages.

Motions to strike can be used to attack the entire pleading, or any part thereof, i.e., even single words or phrases. (CCP § 435; *Baral v. Schnitt* (2016) 1 Cal.5th 376, 393-394; *Warren v. Atchison, T. & S.F. Ry. Co.* (1971) 19 Cal.App.3d 24, 40.) As with demurrers, the grounds for a motion to strike must appear on the face of the pleading under attack, or from matter which the court may judicially notice. (CCP § 437(a).) “[T]he court treats as true the material facts alleged in the complaint, as well as any facts which may be implied or inferred from those expressly alleged.” (*Washington Int’l Ins. Co. v. Superior Court* (1998) 62 Cal.App.4th 981, 984, fn. 2.)

In tort cases, plaintiff may seek punitive damages for “oppression, fraud or malice” by the defendant. (Civ. Code § 3294(a).) As far as punitive damages, the complaint must include specific factual allegations showing that defendant’s conduct was oppressive, fraudulent, or malicious to support a claim for punitive damages. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) Punitive damages may not be pleaded generally. (*Id.*) It is not sufficient to allege merely that defendant “acted with oppression, fraud or malice.” Rather, plaintiff must allege specific facts showing that defendant’s conduct was oppressive, fraudulent or malicious (e.g., that defendant acted with the intent to inflict great bodily harm on plaintiff or to destroy plaintiff’s property or reputation). (*Smith v. Sup.Ct. (Bucher)* (1992) 10 Cal.App.4th 1033, 1041-1042; *Anschutz Entertainment Group, Inc. v. Snapp* (2009) 171 Cal.App.4th 598, 643.)

A properly pleaded fraud claim will itself support recovery of punitive damages. No allegations of “malice” or intent to injure plaintiff are required, because fraud is an alternative basis for recovery (“oppression, fraud or malice”). (*Stevens v. Sup.Ct. (St. Francis Med. Ctr.)* (1986) 180 Cal.App.3d 605, 610.) As stated above, the fraud claim is not subject to demurrer.

2.

CASE #	CASE NAME	HEARING NAME
CVME2509005	MCGINNIS VS CITY OF MURRIETA	MOTION FOR DISCLOSURE AND USE OF PEACE OFFICER PERSONNEL AND OTHER RECORDS OF CITY OF MURRIETA

Tentative Ruling: Hearing Required.

3.

CASE #	CASE NAME	HEARING NAME
CVME2600071	ROWLEY VS MULL	ANTI-SLAPP MOTION

Tentative Ruling: Unopposed Motion is granted. The conduct alleged in the complaint constitutes an exercise of free speech and a matter of public interest.